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26 U.S.C. §6045B — Returns relating to actions affecting basis of specified securities

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규제투자회사 체계에서 이 자료가 서는 자리

델라웨어 법정신탁(조직형태) → 개별 시리즈 RIC — 각 Series / Fund → 규제투자회사(RIC) 투자회사 과세체계 — 내국세법 Subchapter M → §851(g) 독립 법인 과세단위 — 각 Fund 를 별개의 법인으로 취급 → Fund 별 실제 분배 → 회계연도 결산 → Fund 별 분배재원 확정 → 이익에 의한 분배 / 자본환급 (Subchapter C §316) → §301(c)(2) 해당 Fund 주식의 취득가액 감소 → 발행기관 확정자료(§6045B) → 국제원천징수 정산 → 개인별 귀속 → 「소득세법」 §17 포섭

이 자료가 증명하는 것

발행기관에게 취득가액에 영향을 주는 조직행위를 신고하도록 명령한 법률. 신고할 것은 ① 그 조직행위의 내용과 ② 취득가액에 대한 정량적 효과다(제(a)항). 기한은 행위일부터 45일 또는 다음 해 1월 15일 중 이른 날이며(제(b)항), 보유자와 명의인에게도 명세서를 준다(제(c)항). 공개 게시로 신고에 갈음할 수 있다(제(e)항). Form 8937 은 이 법률의무를 이행하는 서식이다.

LII > U.S. Code > Title 26 > Subtitle F > CHAPTER 61 > Subchapter A
> PART III > Subpart B > **§ 6045B**

Quick search by citation:

Title

Section

Go!

26 U.S. Code § 6045B - Returns relating to actions affecting basis of specified securities

U.S. Code Notes Authorities (CFR)

(a) IN GENERAL

According to the forms or regulations prescribed by the Secretary, any issuer of a specified security shall make a return setting forth—

(1) a description of any **organizational action which affects the basis** of such specified security of such issuer,

(2) the quantitative effect on the basis of such specified security resulting from such action, and

(3) such other information as the Secretary may prescribe.

(b) TIME FOR FILING RETURN

Any return required by subsection (a) shall be filed not later than the earlier of—

(1) 45 days after the date of the action described in subsection (a), or

(2) January 15 of the year following the calendar year during which such action occurred.

(c) STATEMENTS TO BE FURNISHED TO HOLDERS OF SPECIFIED SECURITIES OR THEIR NOMINEES

According to the forms or regulations prescribed by the Secretary, every person required to make a return under subsection (a) with respect to a specified security shall furnish to the nominee with respect to the specified security (or certificate holder if there is no nominee) a written statement showing—

(1) the name, address, and phone number of the information contact of the person required to make such return,

(2) the information required to be shown on such return with respect to such security, and

(3) such other information as the Secretary may prescribe.

The written statement required under the preceding sentence shall be furnished to the holder on or before January 15 of the year following the calendar year during which the action described in subsection (a) occurred.

(d) SPECIFIED SECURITY

For purposes of this section, the term “specified security” has the meaning given such term by section 6045(g)(3)(B). No return shall be required under this section with respect to actions described in subsection (a) with respect to a specified security which occur before the applicable date (as defined in section 6045(g)(3)(C)) with respect to such security.

(e) PUBLIC REPORTING IN LIEU OF RETURN

The Secretary may waive the requirements under subsections (a) and (c) with respect to a specified security, if the person required to make the return under subsection (a) makes publicly available, in such form and manner as the Secretary determines necessary to carry out the purposes of this section

—

(1) the name, address, phone number, and email address of the information contact of such person, and

(2) the information described in paragraphs (1), (2), and (3) of subsection (a).

(Added Pub. L. 110-343, div. B, title IV, § 403(d)(1), Oct. 3, 2008, 122 Stat. 3859.)

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Parallel Table of Authorities

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